

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE

FOR

HOUSE BILL NO. 3052

By: Stewart

COMMITTEE SUBSTITUTE

An Act relating to children; enacting the Sir Major White-Bullock Child Protection and Family Notification Act; providing findings and purpose; defining terms; requiring the Department of Human Services to initiate certain safety review in certain circumstances; providing information the review shall include; directing the Department to notify certain individuals; providing exception; providing information the notification shall include; prohibiting the Department from withholding notification; providing considerations for the Department; directing the Department to establish a tracking mechanism; directing hospitals and birthing facilities to report certain information to the Department; providing information the court shall receive; permitting the court to order certain evaluation or supervision; directing the Department to promulgate rules; directing the Department to provide training; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-11-101 of Title 10A, unless there is created a duplication in numbering, reads as follows:

1 This act shall be known and may be cited as the "Sir Major
2 White-Bullock Child Protection and Family Notification Act".

3 SECTION 2. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1-11-102 of Title 10A, unless
5 there is created a duplication in numbering, reads as follows:

6 A. The Oklahoma Legislature finds that:

7 1. Repeated fentanyl-exposed births constitute a foreseeable
8 and preventable risk to infant safety;

9 2. Department of Human Services policies do not consistently
10 trigger enhanced intervention, cross-case review, or family
11 notification when a mother repeatedly gives birth to fentanyl-
12 positive infants;

13 3. The death of Sir Major White-Bullock, an eleven-month-old
14 child who died from fentanyl toxicity after documented repeated
15 prenatal exposure demonstrates a systemic failure, not a single
16 error; and

17 4. Stable family members are often willing and capable of
18 protecting children but are not notified due to procedural silos or
19 narrow interpretations of confidentiality.

20 B. It is the purpose of the Oklahoma Legislature to:

21 1. Close policy gaps that allow repeat prenatal fentanyl
22 exposure without escalated response;

23 2. Require enhanced intervention by the Department for repeat
24 fentanyl-exposed births;

1 3. Ensure qualified, stable family members are notified and
2 engaged as child welfare stakeholders;

3 4. Prioritize child safety while maintaining treatment access
4 and due process for parents; and

5 5. Enhance child safety and early intervention.

6 SECTION 3. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 1-11-103 of Title 10A, unless
8 there is created a duplication in numbering, reads as follows:

9 When used in the Sir Major White-Bullock Child Protection and
10 Family Notification Act, unless the context otherwise requires:

11 1. "Fentanyl-exposed infant" means a newborn who tests positive
12 at birth for fentanyl or whose mother tests positive for fentanyl at
13 delivery;

14 2. "Enhanced child safety review" means a mandatory, multi-
15 disciplinary response by the Department of Human Services triggered
16 by repeat prenatal fentanyl exposure;

17 3. "Qualified familial child welfare stakeholder" means a
18 grandparent, adult sibling, aunt, uncle, or other adult relative
19 who:

- 20 a. has no substantiated child abuse or neglect findings,
- 21 b. is willing to participate in safety planning or
- 22 placement, and
- 23 c. may serve as a temporary or permanent caregiver; and

1 4. "Repeat prenatal fentanyl exposure" means two or more
2 fentanyl-exposed births by the same parent within a five-year
3 period.

4 SECTION 4. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 1-11-104 of Title 10A, unless
6 there is created a duplication in numbering, reads as follows:

7 A. The Department of Human Services shall initiate an enhanced
8 child safety review when a parent has:

- 9 1. A second fentanyl-exposed infant; or
10 2. Any subsequent fentanyl-exposed infant.

11 B. This review shall not be discretionary and shall include:

- 12 1. Case history review across all prior child welfare records;
13 2. Assessment of cumulative risk, not isolated incidents; and
14 3. Review of prior service compliance and outcomes.

15 SECTION 5. NEW LAW A new section of law to be codified
16 in the Oklahoma Statutes as Section 1-11-105 of Title 10A, unless
17 there is created a duplication in numbering, reads as follows:

18 A. Upon triggering an enhanced child safety review, the
19 Department of Human Services shall identify and notify qualified
20 familial child welfare stakeholders, unless the court finds
21 notification would pose an immediate safety risk to the child or
22 parent.

23 B. Notification shall include:

- 24 1. The existence of repeat prenatal fentanyl exposure; and

2. The opportunity to participate in:

- a. safety planning,
- b. temporary or kinship placement, and
- c. case staffing or family team meetings.

C. The Department may not withhold notification solely on confidentiality grounds when:

- 1. The child's safety is at risk due to repeat exposure; and
- 2. The notified party is being considered for placement or protective involvement.

SECTION 6. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-11-106 of Title 10A, unless there is created a duplication in numbering, reads as follows:

When repeat prenatal fentanyl exposure is identified, the Department shall consider, at minimum:

- 1. Immediate safety planning prior to hospital discharge;
- 2. Supervised visitation requirements;
- 3. Kinship placement preference over foster placement;
- 4. Court-ordered substance use treatment with compliance monitoring; and
- 5. Referral to specialized maternal addiction treatment programs.

SECTION 7. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-11-107 of Title 10A, unless there is created a duplication in numbering, reads as follows:

1 A. The Department of Human Services shall establish a repeat
2 prenatal exposure tracking mechanism that:

3 1. Flags repeat cases statewide; and

4 2. Prevents case isolation across counties or service regions.

5 B. Hospitals and birthing facilities shall report fentanyl-
6 positive births to the Department in accordance with paragraph 3 of
7 subsection B of Section 1-2-101 of this title.

8 SECTION 8. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 1-11-108 of Title 10A, unless
10 there is created a duplication in numbering, reads as follows:

11 A. In cases involving repeat prenatal fentanyl exposure, the
12 court shall:

13 1. Receive a summary of prior involvement by the Department of
14 Human Services; and

15 2. Be informed whether family notification occurred and why.

16 B. In cases involving repeat prenatal fentanyl exposure, the
17 court may order:

18 1. Immediate kinship placement evaluations; and

19 2. Expanded protective supervision.

20 SECTION 9. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 1-11-109 of Title 10A, unless
22 there is created a duplication in numbering, reads as follows:

23 Nothing in this act shall:

24 1. Criminalize pregnancy or substance use disorder;

2. Deny access to reunification services; or

3. Eliminate parental rights without court findings.

SECTION 10. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1-11-110 of Title 10A, unless there is created a duplication in numbering, reads as follows:

The Department of Human Services shall promulgate rules within one hundred eighty (180) days of enactment and shall provide training to staff of the Department, hospitals, and courts.

SECTION 11. This act shall become effective November 1, 2026.

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